



# Delaware County Council Meeting April 25th 2023

| Meeting Metadata | Details                                                                                               |
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| Video Recording  | <a href="https://www.youtube.com/watch?v=LpzbmaynCCc">https://www.youtube.com/watch?v=LpzbmaynCCc</a> |
| Publication Date | 2023-04-25T17:53:46Z                                                                                  |
| Target Category  | delaware_county                                                                                       |

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## Delaware County Council Meeting Summary

**Meeting Date:** April 25, 2023

**Body:** Delaware County Council

### 1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order at [00:00:14](#) by the presiding officer.
- **Attendance:**
  - **Present:** Members Spangler, Hughes, Kantz, Webb, Wyatt, and Piper (Freeman noted present during roll call/agenda adoption).
  - **Absent:** None noted.

### 2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Melanie, Mary, and Bob, followed by a moment of silence.
- **Approval of Agenda:** The agenda for April 25, 2023, was approved by roll call vote following a motion by Dan and a second by Ryan.

- **Approval of Minutes:** The minutes of the March 28, 2023, County Council meeting were approved by roll call vote following a motion by Ryan and a second by Dan.
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### 3. Substantive Business & Board Action

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- **00:02:37 Resolution 2023-012: In Memory of Councilwoman Jane Lasseter**
  - **Sponsor / Presenter:** Councilman Hughes.
  - **Deliberation Summary:** The council read and adopted a resolution honoring the late councilwoman Jane Lasseter, highlighting her 40-year career in public service (Township Trustee, County Treasurer, County Auditor, County Recorder, and County Council member) and her contributions to the agricultural community and county government.
  - **Action & Vote Disposition:** Approved by roll call vote (motion by Bill, second by Eugene).
- **00:05:41 Resolution 2023-013: Tax Abatement Withdrawal (ARC EDM)**
  - **Sponsor / Presenter:** County Staff.
  - **Deliberation Summary:** Staff announced that the company requested to withdraw its tax abatement for this project as they are purchasing property within the city limits of Muncie and transferring the tax abatement to the Muncie jurisdiction.
  - **Action & Vote Disposition:** Withdrawn by the applicant; no board action taken.
- **00:06:14 Resolution 2023-014: Railroad Spur Agreement**
  - **Sponsor / Presenter:** County Commissioners / Economic Development representatives.
  - **Deliberation Summary:** Discussion regarding a seven-year lease agreement with an option to purchase for an economic development rail spur project valued at approximately \$3.5 million. The project will be funded via the TIF fund and represents a return exceeding double the county's contribution. The commissioners held a public hearing on April 17 with no objections.
  - **Action & Vote Disposition:** Approved by roll call vote (motion by Ryan, second by Dan).
- **00:08:59 Ordinance 2023-013: Mercy Revenue Bond Amendment**
  - **Sponsor / Presenter:** David Nye, Bond Attorney (Ice Miller) / Susan Carlock (Mercy Corporation).
  - **Deliberation Summary:** Presented as an administrative amendment to a 2014 bond issued for Mercy Corporation. Due to the retirement of the London Interbank Offered Rate (Libor) index in June 2023, the amendment transitions the variable interest rate benchmark to the Secured Overnight Financing Rate (SOFR).
  - **Action & Vote Disposition:** Rules were suspended to allow immediate consideration (unanimous roll call vote on motion by Dan, second by Ryan), and the ordinance was subsequently approved by roll call vote.

- **Financial Transfers & Appropriations**

- *Circuit Court (138)*: Transfer of \$24,565.00 (Assistant Court Reporter line items). Approved by roll call vote.
  - *Jail (145)*: Transfer of \$29,454.78 (Correctional Officer line items). Approved by roll call vote.
  - *Sheriff's Office (129)*: Transfer of clothing allowances to military/educational incentives totaling \$6,000.00. Explained by Nancy Marvin. Approved by roll call vote.
  - *Auditor (123)*: Transfer of \$3,000.00 from software maintenance to equipment computer. Approved by roll call vote.
  - *Fairgrounds (4911)*: Transfer of \$2,000.00 from contractual services to equipment (for a money counter and computer replacement). Approved by roll call vote.
  - *Circuit Court (138)*: Additional transfer of \$2,052.53 (Assistant Court Reporter line items). Approved by roll call vote.
  - *Clerk (125)*: Transfer of \$368.00 across deputy clerk line items. Approved by roll call vote.
  - *Communications (124)*: Transfer of \$28,769.30 and \$26,077.16 for communication technician backfills. Approved by roll call vote.
  - *Election (142)*: Transfer of \$5,000.00 from assistant canvassing board to transcription fees. Approved by roll call vote.
  - *Jail (145)*: Transfer of \$31,468.49 (Correctional Officer line items). Approved by roll call vote.
  - *Sheriff's Office (129) Appropriation*: Additional appropriation of \$3,920.61 for interdiction equipment (ballistics shield and SWAT uniforms) funded via seized drug funds. Approved by roll call vote.
  - *EMA (9209)*: Appropriation of \$5,000.00 for schooling. Approved by roll call vote.
  - *EMS Capital Improvement (4910)*: Appropriation of \$56,470.32 for equipment maintenance agreements. Approved by roll call vote.
  - *Highway Community Crossing Matching Grant (9076)*: Appropriation of \$730,863.50 for contractual services. Approved by roll call vote.
  - *Highway Fund (1173)*: Appropriation of \$917,326.50 for contractual services. Approved by roll call vote.
  - *Assessor / TIF Fund (1131)*: Appropriation of \$6,260.00 (\$5,000 for pictometry aerial imagery, \$1,260 for board of appeals laptop replacement). Approved by roll call vote.
  - *Omnibus Financial Approval*: All financial transfers, appropriations, and reductions were consolidated and approved via roll call vote (motion by Dan, second by Eugene).
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## 4. Committee Reports

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- **Bill Hughes (00:31:19):** Reported that work is ongoing with Mr. Flanagan to draft updated council rules, which will soon be shared with the council and made available to the public for review and potential discussion/adoption next month. Noted that public survey feedback yielded 25 responses, which will be compiled and shared with the council.
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## 5. Open Public Comment / Citizen Forum

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*(Note: A significant portion of the public comment period focused on statements made on social media by Councilman Ryan Webb regarding his gender identity and prior comments concerning transgender individuals.)*

- **00:35:39 Mary Stilts:** Addressed Councilman Ryan Webb's recent social media statements regarding his gender identity, contrasted them with prior posts concerning the transgender community, and called for his resignation.
- **00:38:31 Charlize Jameson:** Offered condolences regarding Jane Lasseter, criticized Councilman Webb's public statements and social media posts regarding gender identity, and called for his resignation.
- **00:42:04 Camber Grubbs:** Addressed Councilman Webb's public statements regarding identity, contrasting them with past remarks made on social media regarding transgender individuals.
- **00:44:52 JM D'Angelo:** Spoke on public official ethics, professionalism, and integrity, criticizing Councilman Webb's online behavior.
- **00:46:32 Chelsea McDonnell:** Emphasized the importance of community representation and decorum, expressing disappointment regarding Councilman Webb's actions.
- **00:48:22 Ella Pache:** Spoke as a student regarding definitions of transgender identity, criticizing Councilman Webb's statements and calling for his resignation.
- **00:50:29 Jamie Zabel (with Students Demand Action):** Demanded the resignation of Councilman Webb, arguing that his statements disparage women, people of color, and the LGBTQ+ community.
- **00:52:52 [Speaker / Citizen]:** Discussed the historical arc of justice, empathy, and how public officials' attitudes impact community inclusion and youth.
- **00:55:13 Bobby Ellis:** Shared a personal reflection on growth, empathy, and respect regarding pronoun usage and interactions with the transgender community.
- **00:59:31 Rick [News / Author]:** Raised concerns regarding juvenile detention funding, the local juvenile legal system, and requested recognition of the late attorney Wayne Lennington.
- **01:01:06 Christopher Bilberry:** Brought forward safety and liability concerns regarding alleged physical altercations involving a county employee inside county-owned buildings across three separate incidents (2020, 2022, and 2023).

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## 6. Administrative Updates & Adjournment

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- **Councilman Webb's Response:** [01:05:32](#) Councilman Ryan Webb addressed the public comments, defending his freedom of speech, clarifying his position on personal gender identity and personal social media usage, and expressing surprise at the focus on private identity matters during a county government meeting compared to other administrative concerns.
- **Adjournment:** The meeting was officially adjourned following a motion by Dan and a second by Ryan, with a roll call vote. The next regular meeting is scheduled for Tuesday, May 23, 2023, at 9:00 AM.

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